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DIVISION OF PUBLICATIONS
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ALIEN PROPERTY CUSTODIAN
ARLINGTON BUILDING
VERMONT AVENUE AND H STREET
WASHINGTON

April 8th, 19.7.

Mr. Griffin,
Division of Publications,
State Department,
Washington, D. C.

Dear Sir:

The President to-day signed an Executive Order authorizing the Alien Property Custodian to sell on the New York Stock Exchange certain shares of stock of the Western Maryland Railway Company.

It is requested that this order be held as confidential.

Yours very truly,

HOWARD SUTHERLAND,
Alien Property Custodian.

Released
Mar 18, 1935

.27-A

EXECUTIVE ORDER.

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN SECURITIES UPON THE NEW YORK STOCK EXCHANGE

- 1 - 2 - 3 - 4 -

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the Amendments to such Act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30th, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28th, 1918, and the amendment to such act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30th, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4th, 1918, and all other amendments thereto, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell upon the New York Stock Exchange, at such time as to him or to his authorized agent may seem advisable, without public or other advertisement, Two thousand One hundred Eleven (2111) shares of Second Preferred stock and Three thousand Four hundred (3400) shares of Common stock of Western Maryland Railway Company, a corporation organized under the laws of Maryland and Pennsylvania, of One Hundred Dollars ($100.00) par value, heretofore required to be conveyed, transferred, assigned and delivered to the Alien Property Custodian as the property of the Deutsche Bank of Berlin

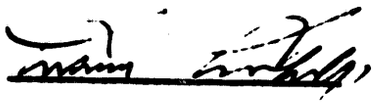
My reasons for the foregoing determination and order are:

First: That, considering the earning capacity and immediate prospects of the Western Maryland Railway Company, it is believed the current prices at which the Second Preferred and Common shares are selling represent their fair market value. No dividends have been paid on either class of stock since seizure by the Alien Property Custodian.

Second: That the sale of said stock at current prices will result in realization in tangible form of a substantial increase in principal by virtue of the appreciation in the market value of the stock since seizure, and the investment of the proceeds in Liberty Loan Bonds or Certificates of Indebtedness of the United States Government would insure a return on the fund.

Third: That the Deutsche Bank, Berlin, Germany, for whose account said stock is held has consented to and requested the Alien Property Custodian to negotiate the sale of the shares at the prevailing market prices.

Fourth: That, as the stock is listed on the New York Stock Exchange and has an active and established market, a public or other advertisement of the sale of the said stock or attempted sale at auction would be a useless formality involving unnecessary expense and would serve no useful purpose.



THE WHITE HOUSE,
April 5, 1927.

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